

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
**DIANCE C. DESOUSA AND THOMAS E.
DESOUSA,**

Index No. 600371/2021

Plaintiffs,

VERIFIED ANSWER

-against-

**RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,**

Defendants.
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The Defendant, **RICHARD A. CALVAGNO II**, by and through his attorneys **JASON M. BARBARA & ASSOCIATES, P.C.**, as and for his Verified Answer to the Verified Complaint, alleges as follows:

FIRST Defendant denies knowledge or information sufficient to form a belief as to the truth of the allegations set forth in Plaintiffs' Complaint in paragraphs numbered: 1; 2; 6; 14; 15; 19; 6, 7, 23 and 26 insofar as they each set forth or purport to set forth zoning classifications; and 25, 26, 32, 33, 35, 36, and 62 insofar as they each set forth or purport to set forth existing law, rules, regulations and ordinances of local law and controlling municipalities, but denies Defendants' violation of any such rules.

SECOND Defendant denies the truth of the allegations set forth in Plaintiffs' Complaint in paragraphs numbered: 4; 9; 11; 12; 13; 16; 17; 18; 20; 22; 27; 29; 30 insofar as it purports to describe two small gatherings hosted by Defendant and misrepresented by Plaintiff as "events"; 31; 32, 33, 34 and 35 as above additionally qualified and to the extent that paragraphs numbered 33-36 suggest the Defendants guilty of any such conduct; 37-43 inclusive; 45-52 inclusive; 54-62 inclusive; 62-65 inclusive; and 67-71 inclusive.

THIRD With respect to Plaintiffs' Complaint paragraph 4, forming the underlying basis upon which each and every cause of action is grounded, your Defendant notes that the Plaintiffs have carelessly alleged that Plaintiffs are the owners of Defendants' property thus rendering the Plaintiff without legal recourse against Defendants on any cause of action relating to the real property.

FOURTH With respect to Plaintiffs' Complaint, paragraph 21 Defendant denies the allegation that Defendant rented the boat slip behind their home.

FIFTH With respect to Plaintiffs' Complaint, paragraph 24 Defendant denies the allegations set forth therein except and insofar as they address Plaintiffs' "walks," and with respect to Plaintiff's conduct or alleged reasons therefor, denies knowledge or information sufficient to form a belief.

SIXTH With respect to Plaintiffs' Complaint, paragraphs numbered: 44; 53; 61; and 66, Defendant repeats each denial or denial made upon information and belief as previously set forth in this Answer.

AS AND FOR A FIRST COUNTERCLAIM

SEVENTH Plaintiffs herein have:

- a. perverted the legal process,
- b. made constant but false complaints to the Defendant, police and other local officials complaining of the acts set forth in its complaint; and
- c. have been told by local police and others that the Defendant is not guilty of any infractions nor violated any local laws, ordinances or rules and that the Plaintiffs have no remedy at law.

EIGHTH That notwithstanding the above, the Plaintiffs nonetheless and maliciously elected to commence this litigation against Defendants with irresponsible haste. Indeed, the Plaintiffs' Complaint:

- a. Erroneously avers in paragraph 4 that the Plaintiffs are the owners of the property upon which subject matter jurisdiction, personal jurisdiction and all causes of action are grounded, thus rendering their Complaint procedurally defective as a matter of law;
- b. Postulates in paragraphs 34 and other paragraphs as to "particular concerns" and the potential for infestation that "may" (but notably that has not) resulted from conditions that such paragraphs do not even accuse the Defendants of having created; and
- c. Concedes in paragraph 42 that he confronted the Defendant but conceals from this Court the fact that the police have been called and told the Plaintiffs that Defendant is NOT guilty of the conduct herein falsely complained of

NINTH By reason of the above, the Plaintiffs are guilty of having abused the legal process and abused process, by commencing this defective and meritless action alleging Defendant's violation of local laws and ordinances when in fact the police have investigated and determined unfounded the complaints Plaintiffs maliciously regurgitate herein. As a result of such conduct, the Defendant is entitled to damages in a sum to be determined by this Court including treble damages.

AS AND FOR A SECOND COUNTER CLAIM

TENTH Defendants repeat and reiterate each and every denial, denial made upon information and belier, and every other allegation set forth above as same were more fully set forth at length herein.

ELEVENTH That the Defendants purchased the subject residence (which the Plaintiff falsely and irresponsibly identifies as its own) at 320 Grand Avenue in or about 2018 in their joint names.

TWELFTH That the Defendant PATRICK J. KARCHER, does not and in fact has never, occupied the subject residence.

THIRTEENTH Rather, the Defendant RICHARD A. CALVAGNO II has always occupied the home with his same sex partner.

FOURTEENTH That the Plaintiffs are morally offended by Defendant CALVAGNO's homosexuality.

FIFTEENTH That as a result of Plaintiffs' prejudice, the Plaintiffs have entered upon a deliberate course of conduct deliberately designed to harass and annoy the Defendants and express Plaintiffs' prejudice against Defendants with the malice aforethought.

SIXTEENTH Indeed, and in the "requests" Plaintiffs' refer to in paragraph 42 of his Complaint and others, the Plaintiff has verbally abused and attacked the Defendant slandering him with offensive slurs like "faggot," "homo" and other intolerant affronts too offensive to repeat herein.

SEVENTEENTH Plaintiff has also approached other neighbors, similarly slandering the Defendant with Plaintiff's prejudicial slurs, to enlist the support of neighbors.

EIGHTEENTH Notably, no neighbors have supported Plaintiffs' efforts and no neighbors have joined in the Plaintiffs' underlying action.

NINETEENTH That Plaintiffs' Complaint is borne of their own hate filled prejudice and discrimination and forms the basis of intentional torts and other offenses arising from their prejudices, hate and discrimination and violation of all laws protecting against such conduct, as a result of which the Defendants ask this Court to punish and sanction Plaintiffs with an award of damages in a sum to be determined by this Court including but not limited to treble damages.

AS AND FOR A THIRD COUNTERCLAIM

TWENTIETH Defendants repeat and reiterate each and every denial, denial made upon information and belief, and every other allegation set forth above as same were more fully set forth at length herein.

TWENTY-FIRST That by reason of the above Plaintiffs are guilty of malicious prosecution, as a result of which the Defendants seek damages in a sum to be determined by this Court.

AS AND FOR A FOURTH COUNTERCLAIM

TWENTY-SECOND Defendants repeat and reiterate each and every denial, denial made upon information and belief, and every other allegation set forth above as same were more fully set forth at length herein.

TWENTY-THIRD That by reason of the above and in consideration of the Plaintiffs' unsuccessful efforts to enlist the support of other neighbors who refused to participate in Plaintiffs' action combined with Plaintiff's nonetheless prosecution of a cause of action for public nuisance without injury to or the support of the public, the Plaintiffs are themselves guilty of private nuisance.

AS AND FOR A FIFTH COUNTERCLAIM

TWENTY-FOURTH Defendants repeat and reiterate each and every denial, denial made upon information and belief, and every other allegation set forth above as same were more fully set forth at length herein.

TWENTY-FIFTH Plaintiff(s) has harassed and menaced the Defendant, followed him to his place of employment where he screamed obscenities meant to menace, shame and intimidate the Defendant, and to also threaten his employment.

TWENTY-SIXTH Plaintiff's harassment, annoying and menacing behavior also includes Plaintiff waiting outside Defendant's home in the morning, shouting obscenities and threats as Defendant exits his home and leaves for work, and or parking his car in front of Defendant's driveway to block Defendant from leaving for work.

TWENTY-SEVENTH That by reason of the above the Plaintiff is guilty of harassment, menacing, intentional infliction of emotional distress and similarly related intentional torts and demands judgment in a sum to be determined by this Court.

AS AND FOR A FIRST AFFIRMATIVE DEFENSE

TWENTY-EIGHTH Plaintiffs' Complaint identifies itself as the owner of both parcels of real property and as such is procedurally defective, fails for a want of jurisdiction, and is defective and void *ab initio*, making false, confusing and misleading statements of essential and material facts.

AS AND FOR A SECOND AFFIRMATIVE DEFENSE

TWENTY-NINTH Plaintiff's Complaint and the causes of action complained of therein fail or to set forth with requisite specificity the conduct complained of and constituting the alleged offense.

AS AND FOR A THIRD AFFIRMATIVE DEFENSE

THIRTIETH Plaintiff's Complaint purporting to set for a cause of action for public nuisance may not be maintained, as a public nuisance requires the complained of conduct to have affected a group of people.

THIRTY-FIRST Plaintiffs' Complaint is maintained in Plaintiffs' individual names and interest, specifically referring to "I," "my," "we" or "our," use and enjoyment of "our home" (¶¶15, 19 and 21, by way of example but not limitation.)

THIRTY-SECOND More specifically, in their Second Cause of Action for Public Nuisance, Plaintiff complains in paragraphs 57 and 59 of specific damages allegedly sustained by Plaintiffs only, and as such a cause of action for public nuisance is insufficiently pled may not be maintained.

AS AND FOR A FOURTH AFFIRMATIVE DEFENSE

THIRTY-THIRD Plaintiff's Complaint purporting to set forth a cause of action for private nuisance may not be maintained, as a cause of action for private nuisance must allege and demonstrate that the conduct complained of would be considered annoying or upsetting to any reasonable person and the Plaintiff's Complaint fails to include such allegations or make such a showing.

THIRTY-FOURTH In fact, the Plaintiff has called the county Code Enforcement to Defendant's home on more than one occasion and the Code Enforcement have reported to Plaintiff that Defendant's conduct is not unreasonable, does not violate any controlling law and that Defendant has not impermissibly used his property.

AS AND FOR A FIFTH AFFIRMATIVE DEFENSE

THIRTY-FIFTH A defense is grounded upon the Defendant's legal use and ownership of the real property.

AS AND FOR A SIXTH AFFIRMATIVE DEFENSE

THIRTY-SIXTH A defense is grounded upon the Defendant's vehicles factory installed exhaust and remote starter options satisfying all federal and state regulations relating thereto and affirmatively establishing the Plaintiff's complaints to be void of merit, petty, harassing in nature and deliberately aimed at an otherwise innocent Defendant who purchased and operates his vehicle in accordance with all controlling laws, rules and regulations.

AS AND FOR A SEVENTH AFFIRMATIVE DEFENSE

THIRTY-SEVENTH A defense is grounded upon a failure of “substantial” injury.

AS AND FOR AN EIGHTH AFFIRMATIVE DEFENSE

THIRTY-EIGHTH Plaintiffs are barred from recovery of the damages sought due to their contributory and culpable conduct.

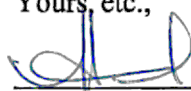
AS AND FOR A NINTH AFFIRMATIVE DEFENSE

THIRTY-NINTH Plaintiffs lack standing.

WHEREFORE, Defendant demands judgment on his counterclaims for actual, compensatory and punitive damages including treble damages, in a sum to be determined by this Court and accruing through the date of judgment on each such cause of action and dismissing the Plaintiffs’ complaint and denying Plaintiff the relief requested thereunder, together with such other and further relief to be awarded to Defendant as this Court may deem appropriate, and dismissing the Plaintiff’s complaint and denying Plaintiff the relief requested thereunder, together with such other and further relief to be awarded to Defendant as this Court may deem appropriate.

Dated: New Hyde Park, New York
January 26, 2020

Yours, etc.,



JASON M. BARBARA & ASSOCIATES, P.C.

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Commission Expires August 19, 2023
Qualified in Queens County
No. 02B6396227
Notary Public, State of New York
MINDY J. BETTA